

DUI First 72 Hours

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Emergency Action Checklist

ImNotAnAttorney.com

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We Research. You Ask.

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Important: This playbook provides legal INFORMATION — not legal ADVICE. The analysis draws on methods developed by elite defense attorneys. Your attorney remains the final authority on strategy decisions.

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Do These Three Things Now

1. Request Your DMV Hearing TODAY

Your deadline is **7 to 30 days from arrest** depending on your state. The clock is already running. If your attorney hasn't done this, call them now.

This is separate from your criminal case. Miss this deadline and your license gets automatically suspended — regardless of what happens in court. There is no “I didn't know” exception. There is no extension.

DMV Hearing Request Deadlines by State:

Deadline	States
7 days	Colorado (breath/refusal), New York, Washington
10 days	California, Colorado (blood test), Florida, Indiana, Oregon
14 days	Michigan
15 days	Arizona, Missouri, Texas
30 days	Georgia, Ohio, South Carolina
No separate admin hearing	Kentucky, Montana, New Jersey, Pennsylvania, Rhode Island, South Dakota, Tennessee — license suspension handled through court process

This table reflects state statutes as of early 2026. Confirm your state's current deadline with your attorney or your state's DMV/DOR website on the day of your arrest. If your state isn't listed, call your state DMV immediately.

2. Write Down Everything You Remember About the Stop

Tonight. Not tomorrow. Your memory fades fast.

Write down:

- ♦ What time were you pulled over?
- ♦ What reason did the officer give for the stop?
- ♦ What road conditions existed (lighting, weather, road surface)?
- ♦ What did the officer say to you? What exact words?
- ♦ Were you asked to take field sobriety tests? Which ones? On what surface?
- ♦ How long did you wait before a breath or blood test?
- ♦ Were you read your rights? When?
- ♦ Was there a dashcam or bodycam? Did you see one?

This becomes your case journal. Even if you never use it in court, it's invaluable for your attorney meeting.

3. Read the 6 Questions Below – Bring Them to Your Attorney Meeting

The questions on the next page are designed to test whether your attorney is actively working your case. Bring them to your first meeting. Write down the answers.



What NOT to Do – Common Mistakes That Hurt Your Case

This section exists because people in crisis do predictable things that make their situation worse.

Do not post about your arrest on social media. Nothing. No vague posts about “worst night of my life.” No check-ins at the courthouse. Prosecutors have internet access. Anything you post can and will be used against you.

Do not talk about your case with anyone except your attorney. Not friends. Not coworkers. Not your Uber driver. Conversations with your attorney are privileged — no one can compel your attorney to reveal what you discussed. Conversations with everyone else are not. Your friend can be subpoenaed.

Do not go back to the bar or restaurant to ask for security footage. This is evidence tampering territory. Your attorney handles evidence collection through proper legal channels.

Do not call the arresting officer. Not to apologize. Not to ask for leniency. Not to “get their side of the story.” Nothing you say to the officer will help you, and everything you say can be used against you.

Do not ignore the citation or the DMV notice. Both contain deadlines. Missing a court date results in a bench warrant. Missing the DMV hearing deadline results in automatic license suspension. Neither is recoverable once the deadline passes.

Do not drive on a suspended license. If your license was confiscated at the time of arrest and you’re driving on a temporary permit, verify the expiration date and stop driving the day it expires. A driving-on-suspended charge on top of a DUI dramatically worsens your case and eliminates most diversion options.

The Bottom Line: Everything on this “don’t” list has one thing in common — it gives the prosecution evidence they didn’t have before. Silence protects you. Patience protects you. Action on the three things above protects you. Everything else can wait.

6 Questions for Your Attorney Consultation

Bring these to your first meeting. Write down the answers.

1. “Have you requested my DMV hearing?”

If they look confused, that’s information. The DMV hearing has its own deadline and is separate from your criminal case. An attorney who hasn’t mentioned it may not be treating your case as urgently as it requires.

What to listen for: A specific answer — “Yes, I filed the request on [date]” or “Your state handles it through the court process, so we don’t need a separate request.” A vague “we’ll get to it” is a red flag when the deadline is measured in days.

2. “What is your theory of defense?”

An attorney without a theory is waiting for the plea offer. The theory drives everything — which motions to file, which evidence to challenge, which witnesses to depose. Without one, your attorney is reactive instead of proactive.

What a good answer sounds like: “I’m looking at challenging the stop itself — the officer’s stated reason doesn’t match the dashcam timeline. I’m also pulling breathalyzer maintenance records.” *Specific. Names evidence. Identifies a path.*

What a bad answer sounds like: “We’re still early in the process. Let me review everything and I’ll let you know.” *This means they don’t have one.*

3. “Have you reviewed the dashcam footage?”

Dashcam and bodycam footage is often the most important evidence in a DUI case. It shows the actual stop, the field sobriety tests, and the officer’s behavior. If your attorney hasn’t requested it, ask why.

4. “Were the field sobriety tests administered correctly?”

NHTSA has strict protocols for field sobriety tests — the surface must be flat and hard, the instructions must be given in a specific sequence, the scoring must follow exact criteria. If the officer improvised — wrong surface, wrong instructions, wrong scoring — the results can be challenged.

5. “What’s your plan for the breathalyzer evidence?”

Breathalyzers need regular calibration. Blood samples need proper chain of custody. Testing equipment has error margins. Your attorney should be requesting calibration logs and maintenance records — not just accepting the number at face value.

6. “What’s the realistic best and worst outcome?”

Vague optimism is worse than honest assessment. A good attorney can articulate the range — from dismissal to conviction — and explain what drives the outcome in each direction. If they can’t tell you the realistic range, they either haven’t analyzed your case or don’t want to give you honest information.

What's Next

The 72-hour checklist protects you from immediate mistakes. But there's more to know — the two types of DUI charges (per se vs. impairment), how discovery works, what motions apply, and 20 more questions that hold your attorney accountable.

The DUI Defense Playbook (\$97, instant download) covers everything:

- ♦ 26 questions with good/bad answer examples
- ♦ Case stage roadmap from arrest to resolution
- ♦ 12-point evidence red flag checklist
- ♦ Case Progress Scorecard
- ♦ One-page cheat sheet for attorney meetings

Your \$97 is fully credited toward case-specific analysis within 30 days.

imnotanattorney.com/playbook/dui-first-offense



This is legal information, not legal advice. We are not attorneys and do not provide legal representation. DUI laws vary significantly by state — always consult with a licensed attorney in your jurisdiction.

About ImNotAnAttorney

Built by a defendant who wished this existed at 2 AM when the fear was loudest.

ImNotAnAttorney.com uses documented strategies from 40+ elite defense attorneys to give you the questions, context, and tools to take control of your case.

We don't replace your attorney. We make sure you get your money's worth from them.

Ready for Deeper Analysis?

This playbook gives you the questions. The **Case Decoder** (\$197) applies them directly to YOUR case — analyzing your specific charges, jurisdiction, and circumstances to generate a personalized report with prioritized action steps.

Everything you paid for this playbook applies as credit toward your Case Decoder.

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